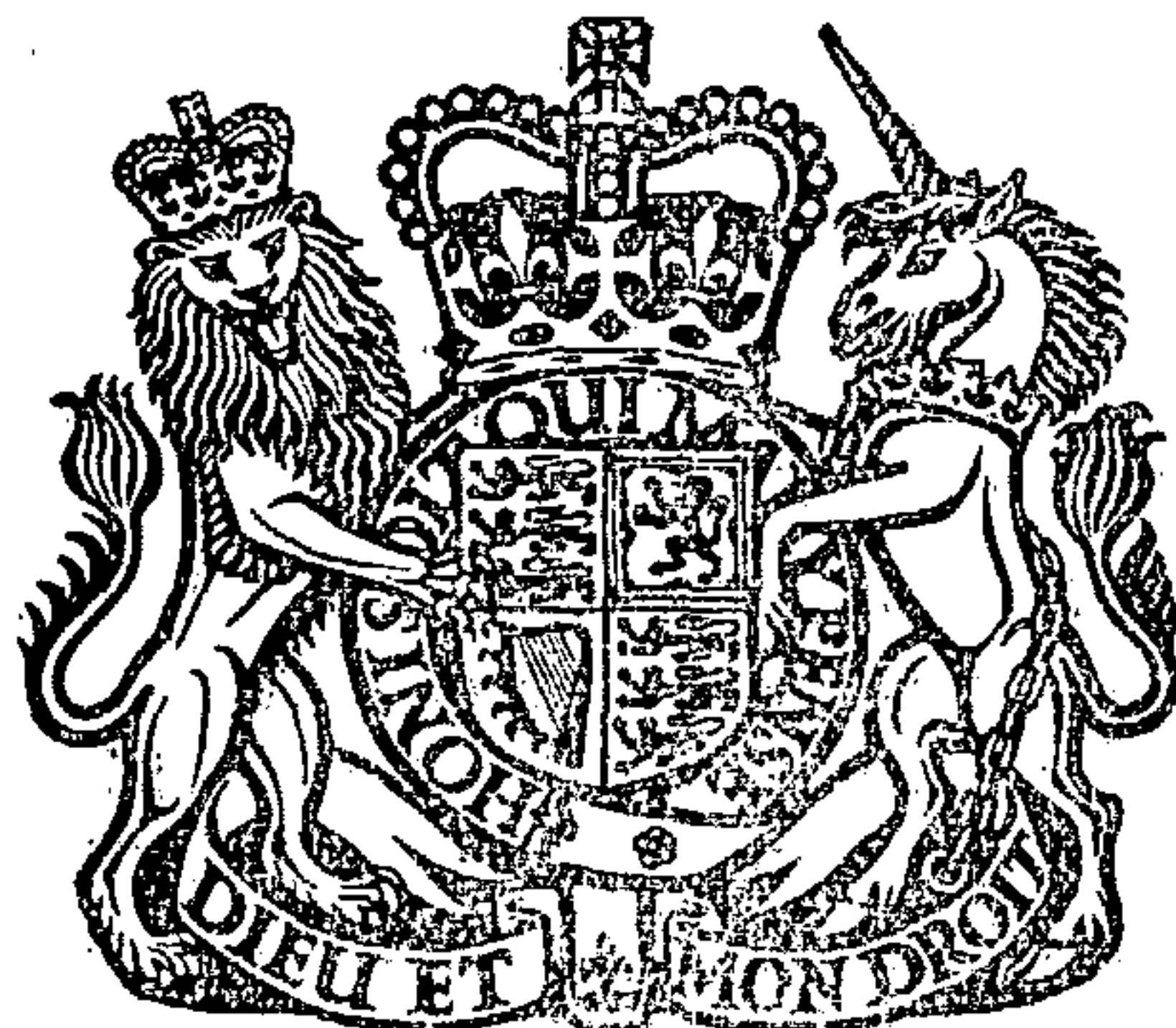




CHAPTER xi

An Act to provide for the removal of certain restrictions attaching to lands forming part of the Close of the Cathedral Church of the Holy Trinity and of Saint Peter and Saint Paul and of Saint Swithun in Winchester, to authorise the use of the said lands for building and other purposes and the disposal thereof; and for other purposes.
[9th May, 1961.]

WHEREAS—

(1) The city of Winchester is under the government of the mayor, aldermen and citizens of the city of Winchester (in this Act called “the Corporation”):

(2) The Cathedral Church of the Holy Trinity and of Saint Peter and Saint Paul and of Saint Swithun in Winchester (in this Act called “the Cathedral”) is surrounded by consecrated land (in this Act called “the Cathedral Close”), parts of which were formerly used for burials:

(3) By an Order in Council of Her late Majesty Queen Victoria, dated the thirteenth day of September, eighteen hundred and fifty-four, burials in the burial grounds of the Cathedral were discontinued:

(4) The said Order in Council has been varied by divers other Orders in Council which are not material to the subject-matter of this Act:

(5) By a lease dated the twenty-eighth day of December, nineteen hundred and thirty-two, and made between Edward

Gordon Selwyn, Dean of the Cathedral and the Chapter of the Cathedral of the one part and the Corporation of the other part, the Dean and Chapter of the Cathedral demised to the Corporation certain lands forming part of the Cathedral Close for a term of twenty-one years from the twenty-fifth day of December, nineteen hundred and thirty-two, and the Corporation thereby covenanted to lay out the said lands as a car park and thereafter to maintain the same as a car park or as an open space:

(6) By a lease dated the thirtieth day of September, nineteen hundred and fifty-three, and made between Edward Gordon Selwyn, Dean of the Cathedral and the Chapter of the Cathedral of the one part, and the Corporation of the other part, the Dean and Chapter of the Cathedral demised to the Corporation the said lands for a further term of seven years from the twenty-fifth day of December, nineteen hundred and fifty-three, and the Corporation covenanted to maintain the said lands in good condition as a car park:

(7) The tenancy under the said last-mentioned lease has not been terminated in accordance with the provisions of Part II of the Landlord and Tenant Act, 1954:

(8) In pursuance of the said leases the Corporation have provided and maintain a parking place for vehicles on the said lands:

(9) In the year nineteen hundred and thirty-four the Dean and Chapter of the Cathedral constructed a boiler house and pipes and apparatus connected therewith, on or under land forming part of the Cathedral Close, for the purpose of heating the Cathedral, and subsequently added fuel storage tanks on that land:

(10) Subject to the said lease to the Corporation and to other leases not material to this Act, the freehold of the Cathedral Close is vested in the Dean and Chapter of the Cathedral:

(11) When the said parking place for vehicles was provided, and when the said boiler house and fuel storage tanks were constructed, it was not realised that the land on which they were respectively provided and constructed was, or might have been, part of a disused burial ground:

(12) It is expedient that the provision and maintenance of the said parking place for vehicles and the construction and maintenance of the said boiler house and fuel storage tanks should be confirmed by the authority of Parliament:

(13) It is expedient that certain lands (in this Act called "the specified lands") forming part of the Cathedral Close should be freed from all restrictions which may affect the same by reason of the same being part of a disused burial ground, and that the use and disposal thereof be authorised in manner provided by this Act:

(14) In November, nineteen hundred and sixty, a plan showing the specified lands was deposited in the office of the Clerk of the Parliaments, and copies thereof were deposited in the Private Bill Office of the House of Commons and with the town clerk of the city of Winchester, which plan is in this Act referred to as "the deposited plan":

(15) In connection with the use of the specified lands for the purposes authorised by this Act, it is expedient that the Corporation be authorised to stop up Paternoster Row in manner provided by this Act:

(16) It is expedient that the other provisions in this Act should be enacted:

(17) The purposes of this Act cannot be effected without the authority of Parliament:

(18) In relation to the promotion of the Bill for this Act, the requirements of Part XIII of the Local Government Act, 1933, have been observed by the Corporation:

May it therefore please Your Majesty, that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

1. This Act may be cited as the Winchester Cathedral Close Citation Act, 1961.

2.—(1) In this Act, unless there be something in the subject Interpretation or context repugnant to such construction—

"the Bishop" means the Lord Bishop of Winchester for the time being and during a vacancy in the see of Winchester includes the guardian of the spiritualities thereof;

"the Cathedral" means the Cathedral Church of the Holy Trinity and of Saint Peter and Saint Paul and of Saint Swithun in Winchester;

"the Cathedral Close" has the meaning assigned to that expression in the preamble to this Act;

"the city" means the city of Winchester;

"the Corporation" means the mayor, aldermen and citizens of the city;

"the Dean and Chapter" means the Dean and Chapter of the Cathedral;

"the deposited plan" has the meaning assigned to that expression in the preamble to this Act;

"the specified lands" means the lands shown on the deposited plan and thereon coloured pink.

(2) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment including this Act.

Sanction and confirmation of parking place and boiler house, etc.

3. Notwithstanding the provisions of the Burial Act, 1855, and the Disused Burial Grounds Act, 1884, the provision by the Corporation of a parking place for vehicles on the specified lands, and the construction by the Dean and Chapter of a boiler house and fuel storage tanks on or under the specified lands, and of pipes and apparatus under the Cathedral Close and the retention thereof, are hereby sanctioned and confirmed, and—

- (a) the Corporation and the Dean and Chapter, or either of them, are hereby authorised to maintain, repair and renew the said parking place as occasion may require; and
- (b) the Dean and Chapter are hereby authorised to maintain and repair the said boiler house and fuel storage tanks and reconstruct the same as occasion may require or, if they think fit, remove the same and construct another boiler house with fuel storage tanks and pipes and apparatus on or under another part of the Cathedral Close.

Discharge of trusts and restrictions affecting specified lands.

4. As from the passing of this Act, the specified lands shall be freed and discharged from all trusts, uses, obligations, disabilities and restrictions whatsoever which immediately before the passing thereof attached to the specified lands, and from all rights and interests of any person who is a personal representative or relative of any deceased person whose remains are interred in the specified lands, and from all other trusts, uses, obligations, disabilities and restrictions whatsoever which attached to the specified lands immediately before the passing of this Act by reason of the specified lands or any part thereof being a disused burial ground or otherwise.

Power to use specified lands for hotel and for other purposes.

5. Notwithstanding anything contained in any enactment, but subject to the provisions of this Act, it shall be lawful at any time after the passing of this Act to use, deal with or dispose of the specified lands or any part thereof—

- (1) for the purpose of building an hotel thereon;
- (2) for the purpose of erecting any buildings thereon;
- (3) for the purpose of a parking place for vehicles;
- (4) for any other purpose; or
- (5) for any two or more of those purposes;

in like manner as if no part thereof had ever been consecrated or used or set apart for the purpose of burial of human remains.

6. Subject to the rights of the Corporation under the lease dated the thirtieth day of September, nineteen hundred and fifty-three, and made between Edward Gordon Selwyn, Dean of the Cathedral, and the Chapter of the Cathedral of the one part and the Corporation of the other part, the Dean and Chapter may sell, lease, use, deal with or otherwise dispose of the specified lands or any part thereof for such price or consideration, in such manner and upon and subject to such terms as the Dean and Chapter may think fit pursuant to the provisions of the Ecclesiastical Leasing Acts, 1842 and 1858. Power to dispose of specified lands.

7.—(1) (a) Before any person erects, or causes to be erected, any building on the specified lands, or uses the specified lands, or causes the same to be used for any purpose, other than as a burial ground, the Dean and Chapter shall remove or cause to be removed therefrom the remains of all deceased persons interred therein. Removal of human remains from specified lands.

(b) Before the Dean and Chapter construct a boiler house with or without fuel storage tanks on any other part of the Cathedral Close, they shall remove or cause to be removed therefrom the remains of all deceased persons interred in that part:

Provided that, if it appears to the Secretary of State that compliance with the requirements of this subsection is in all the circumstances unnecessary in relation to all or any of the remains, he may dispense (on such conditions, if any, as he thinks fit) with compliance with those requirements in relation to those remains.

(2) The Dean and Chapter may, without any faculty for the purpose, remove or cause to be removed any such remains, and cause them to be interred in such other consecrated burial ground or cemetery in which burials may legally take place as, subject to the consent of the Bishop, the Dean and Chapter think suitable for the purpose, but, in the case of interment in a churchyard, the previous consent of the incumbent of the benefice concerned shall also be required.

(3) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the city.

8.—(1) Subject to the provisions of this section, the Corporation may stop up as a highway the whole, or such part as they may determine, of Paternoster Row. Stopping up of Paternoster Row.

(2) Subject to the provisions of this section, the Corporation may authorise the construction of buildings over Paternoster Row, and the placing of appropriate supports for the buildings on parts of Paternoster Row other than the carriageway, and may

enter into and carry into effect agreements with the owners of such buildings with respect to the maintenance and use of such part of Paternoster Row as shall remain a highway beneath such buildings.

(3) In the exercise of the powers of this section, the Corporation shall secure that reasonable access for pedestrians is at all times maintained between Colebrook Street and the footpath at the north side of the Cathedral Close.

(4) The Corporation shall not, under the powers of this section, stop up any part of Paternoster Row, unless and until they are the owners in possession of all lands and houses on both sides of that part or the Corporation obtain the consent of the owners, lessees and occupiers of those lands and houses.

Saving for
town and
country
planning.

9. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act, 1947, for the purpose of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of Act.

10. All the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Corporation, but one-half of the amount thereof shall be repaid to the Corporation by the Dean and Chapter.

Table of Statutes referred to in this Act

Short title	Session and chapter
Ecclesiastical Leasing Act, 1842	5 & 6 Vict. c. 108.
Burial Act, 1855	18 & 19 Vict. c. 128.
Ecclesiastical Leasing Act, 1858	21 & 22 Vict. c. 57.
Disused Burial Grounds Act, 1884	47 & 48 Vict. c. 72.
Local Government Act, 1933	23 & 24 Geo. 5 c. 51.
Town and Country Planning Act, 1947	10 & 11 Geo. 6 c. 51.

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